

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMELIA SZASZ,

Petitioner

VS.

DAVID SEMEL,

Respondent

) Case Number: FDV-25-818599

) Hearing Date: May 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On 8/26/2025, Petitioner Amelia Szasz (Mother) filed a Request for Domestic Violence Restraining Order (DVRO) against Respondent David Semel (Father). The parties are married and have two children together, Charles (who turned 18 on 4/19/2026) and Isaiah (who is an adult). Mother is represented by attorney Robert Rathmell. Father is self-represented.
- 2) On 11/5/2025, following a short-cause hearing, Judge Costin issued a 1-year DVRO against Father for Mother's protection and for Charles' protection ("until he turns 18"). On 5/5/2026, an Amended DVRO was entered removing Charles as a protected party (because he turned 18 years old). The DVRO for Mother's protection is set to expire on 11/5/2026.
- 3) On 12/31/2025, Mother filed a Request for Order seeking \$58,752 in fees, \$1,929 in costs, and a projected \$10,000 "in connection with this Request for Order" under Family Code section 6344.
- 4) On 12/31/2025, Mother's attorney filed a declaration stating that Mother has incurred \$58,752 in attorney's fees and \$1,929 in costs "related to pursuing and enforcing the DVRO" between 8/29/2025 (when Mother's attorney was retained) and 12/31/2025 (the date of Mother's

1 attorney's declaration). Mother's attorney estimates that Mother will incur an additional \$10,000
2 in attorney's fees and costs in connection with responding to any opposition to this request,
3 prepare any reply, meet and confer with Father, and appear at the hearing on attorney's fees if
4 required. Mother therefore seeks a total fee award of \$70,681. Mother states that Father has the
5 ability to pay Mother's attorney's fees and costs because Father is a "partner at a law firm" and
6 "earns significantly more income than Mother."

7 5) As set forth in the Findings and Order After Hearing filed 3/30/2026, the prior 3/19/2026 hearing
8 was continued to 5/21/2026 because Mother's 12/31/2025 Request for Order had been
9 electronically served on Father and the Court did not see in the record that Father had agreed to
10 accept electronic service in this case.

11 6) On 4/21/2026, Mother's attorney filed a Proof of Electronic Service stating that Mother's
12 12/31/2025 Request for Order, Mother's attorney's declaration, blank Responsive Declaration,
13 and "proposed Findings and Order After Hearing for 3/19/2026" were emailed to Father on
14 3/26/2026. Attached to the Proof of Electronic Service is a declaration by Mother's attorney
15 stating that he does not have a mailing address for Father and his office attempted to personally
16 serve Father at his work address on 3/26/2026. Mother's attorney attached an email from Father
17 dated 3/26/2026 which states: "I've been told you sent a process server to my office, in violation
18 my agreement to accept e-service and local rules governing service. Kindly refrain from further
19 disturbing my office and email me anything you intend to serve, then I won't report you to the
20 State Bar." Mother's attorney attached an email responding to Father's email wherein Mother's
21 attorney states: "Here's the email we sent you on 1/8/26 with the attached Request for Order for
22 Fees pursuant to Family Code section 6344. The hearing was on March 19, 2026, at 9:00 a.m. in
23 Dept. 404 as indicated on the endorsed filed FL-300. The hearing took place and the court
24 adopted its tentative ruling. I've attached the FOAH prepared by our office although we have not
25 received the conformed copy yet from the Court." Mother's attorney attached a second email to
26 Father wherein Mother's attorney sends Father the Tentative Ruling Instructions.

27 7) The Court notes that on 4/20/2026 in related Case No. FDV-26-819100, Charles filed his own
28 Request for DVRO against Father, which is set to be heard on 5/29/2026.
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1 8) The Court also notes that on 4/29/2026, in related Case No. FCS-25-357634, Judge Pro Tem
2 Judith Harding ordered Father to pay Mother \$2,100 per month in guideline child support and this
3 order is based on Father earning \$16,083 per month and Mother earning \$6,950 per month.

4 **B. Findings and Order**

- 5 1) The Court cannot consider Mother's attorney's declaration attached to the Proof of Electronic
6 Service filed 4/21/2026 because there is no evidence in the record that Mother's attorney's
7 declaration was served on Father. Moreover, Mother's attorney should have served a file-
8 endorsed copy of the Findings and Order After Hearing for the 3/19/2026 hearing.
- 9 2) The hearing on Mother's request for Family Code section 6344 attorney's fees is continued once
10 more to **Tuesday, 8/11/2026 at 9:00 AM in Dept. 404.**
- 11 3) In advance of the next hearing date, Mother's attorney shall have a copy of his declaration
12 attached to the Proof of Electronic Service filed 4/21/2026 served on Father along with file-
13 endorsed copies of the Findings and Orders After Hearing for the 3/19/2026 and 5/21/2026
14 hearing dates.
- 15 4) Mother's attorney shall prepare the Findings and Order After Hearing.
- 16 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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